

TENTATIVE RULINGS for LAW and MOTION
March 25, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Belfor USA Group, Inc. v. Tilden-Lafayette, LLC et al.**
Case No. CV2025-1734

Hearing Date: **March 25, 2026** **Department Fourteen** **9:00 a.m.**

Cross-defendant Greystar Management Services, LLC's ("cross-defendant") request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (h), 453.) The document is not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Cross-defendant's demurrer to the first cause of action for breach of contract as alleged in cross-complainants Tilden-Lafayette, LLC and The U Davis, LLC's (collectively, "cross-complainants") cross-complaint is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that cross-complainants fail to state facts sufficient to constitute this cause of action based upon breach of contract. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [the elements of breach of contract are: (a) the existence of the contract, (b) plaintiff's performance or excuse for nonperformance, (c) defendant's breach; and (e) the resulting damages to the plaintiff].) Specifically, cross-complainants fail to set out the contract verbatim, incorporate an attached copy, or plead the written contract according to its legal effect. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also 4 Witkin, Cal. Procedure (4th ed. 1997) Pleading, §§ 479-480, pp. 572-573; Cross-Complaint ¶¶ 1-9).

Cross-complainants may file an amended cross-complaint by no later than April 6, 2026 (within 10 days after the hearing, unless otherwise ordered.) (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lopez v. City of Woodland et al.**
Case No. CV2025-0215

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Motion for order nunc pro tunc:

Plaintiff Niko Lopez' motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, is **GRANTED**. The Court finds that the complaint presented for filing on July 14, 2025, was presented to the clerk for filing in a form that complied with state law and should not have been rejected. (Cal. Rules of Court, rules 2.100 – 2.110; *Carlson v. Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 127; Kim Decl., ¶¶ 2, 4, 5, Exhibits A – C.)

The effective date of the filing of plaintiff's first amended complaint **SHALL** be **July 14, 2025**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Given the Court's ruling on plaintiff Niko Lopez' motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, defendant City of Woodland's demurrer to plaintiff's first amended complaint is **OVERRULED** as moot.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV2025-0929

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Nadir Malik's opposition to defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Based on plaintiff's opposition stating that he recently retained new counsel who reviewed his case file and prepared a second amended complaint that addresses each of the deficiencies identified in defendant's motion for judgment on the pleadings, the Court will allow plaintiff time to file a motion to file a second amended complaint. (Code Civ. Proc., § 473, subd. (a); Opp., p. 2; Warwick Decl., ¶¶ 2-13.) The Court finds that if a second amended complaint is filed, defendant's motion for judgment on the pleadings will be moot. If a second amended complaint is not filed, the Court will rule on defendant's motion for judgment on the pleadings. Therefore, on the Court's own motion, defendant's motion for judgment on the pleadings is **CONTINUED to May 19, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: Sweeten v. GRV dba Grand River Villa et al.
Case No. CV2025-3756

Hearing Date: March 25, 2026 **Department Fourteen** **9:00 a.m.**

The Court declines to rule on defendants GRV, dba Grand River Villa and Ciminocare's evidentiary objections as the Court did not rely upon the paragraphs challenged in determining this motion.

Defendants' motion to compel arbitration is **GRANTED IN PART**. (9 U.S.C. § 2 et seq.; Code Civ. Proc., §§ 1281, 1281.2.) The Court finds that the issues of the validity and enforceability of the arbitration agreement between the parties was delegated to an arbitrator for determination. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892 [parties can agree to arbitrate the gateway question of arbitrability]; *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 252 [procedural questions which grow out of the dispute and bear on its final disposition, such as a challenge to the enforceability of the entire contract in which an arbitration clause appears, is presumptively for the arbitrator and not for the judge to decide]; see *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357 [state law principles govern the enforceability of arbitration agreements even where the FAA applies]; Soto Decl., ¶¶ 3 – 5, Exhibits A, B.)

This matter is **STAYED** pending the outcome of the arbitration on these issues. (Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.